



Notification Waiver Determination

Fujifilm – endoscopy distribution business in Australia

Acquisition	FUJIFILM Australia Pty Ltd (FUJIFILM Australia) applied for a notification waiver in respect of its proposed acquisition of all, or substantially all, of the FUJIFILM-branded endoscopy distribution business assets of C.R. Kennedy & Company Pty Ltd (CRK), including equipment, inventory (including spare parts), customer and supplier contracts, certain employees and the associated after sales service function in Australia (the Acquisition). The Acquisition will be implemented in two stages: 1. the transfer of the commercial rights of the FUJIFILM-branded endoscopy distribution business will take effect on 1 July 2026; and 2. the transfer of the after sales services operations will follow on 1 April 2027, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	9 June 2026

Parties to the Acquisition	The acquirer, FUJIFILM Australia, is part of the global FUJIFILM group of companies, and is ultimately owned by FUJIFILM Holdings, a listed company in Japan. FUJIFILM Australia operates across a diverse range of industries, and supplies photographic imaging solutions, commercial printing solutions, medical imaging solutions, recording media and industrial products. The endoscopy products are manufactured by FUJIFILM Corporation, the group's primary operating company in Japan. FUJIFILM Corporation is a global manufacturer of endoscopy equipment, namely endoscopes, processors and ancillary equipment. FUJIFILM Australia currently supplies its endoscopy products exclusively through CRK. CRK is an importer and distributor of photographic, hunting, geospatial, medical and surveillance equipment. CRK's medical division supplies specialised medical equipment, technology, software, and support services primarily to the healthcare sector across Australia and New Zealand. CRK supplies FUJIFILM-branded endoscopy products to hospitals, day surgeries and medical clinics in Australia for use in endoscopic procedures. CRK also provides servicing and preventative
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	maintenance for endoscopy equipment from its fully equipped service repair centres in Melbourne and Sydney offering repairs on equipment nationally using advanced diagnostic equipment, tools, multi-function inspection and quality control tests.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular, there is no horizontal consolidation or removal of a competitor as a result of the Acquisition as it involves FUJIFILM Australia replacing CRK as the exclusive distributor of FUJIFILM endoscopy products. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act